

24STCV09008 24STCV09008

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 24STCV09008 Hearing Date: June 26, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 11:01 AM on June 25, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 25, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of

intention to appear is not given.

TENTATIVE RULING

Plaintiff Keep America Safe and Beautiful's motion for

approval and entry of the stipulated consent judgment is GRANTED.

ANALYSIS

Motion To Approve Entry
of Consent Judgment

Plaintiff moves

for approval and entry of the consent judgment entered into between Plaintiff and
Defendant The Wellbeauty Company, formerly Naomi Whittel

Brands LLC. The product that is covered by this Consent Judgment is identified as
Simply Goodfats - Creamy MCT - Unflavored MCT Oil powder; UPC#: X002YBFBA3. (Proposed
Consent Judgment, § 1.3.)

Health & Safety Code § 25249.7(f)(4)
states:

(4) If there is a settlement of an action
brought by a person in the public interest under subdivision (d), the plaintiff
shall submit the settlement, other than
a voluntary dismissal in which no consideration is received from the defendant,
to the court for approval upon noticed motion, and the court may approve the settlement
only if the court makes all of the following findings:

(A) The warning that is required by the
settlement complies with this chapter.

(B) Any award of attorney's fees is reasonable
under California law.

(C) The penalty amount is reasonable based
on the criteria set forth in paragraph (2) of subdivision (b).

(Health & Safety Code § 25249.7(f)(4).)

Health & Safety Code § 25249.7(b)(2)
provides:

(2)

In assessing the amount of a civil penalty for a violation of this chapter, the
court shall consider all of the following:

(A)

The nature and extent of the violation.

(B)

The number of, and severity of, the violations.

(C)

The economic effect of the penalty on the violator.

(D)

Whether the violator took good faith measures to comply with this chapter and the time these measures were taken.

(E)

The willfulness of the violator's misconduct.

(F)

The deterrent effect that the imposition of the penalty would have on both the violator and the regulated community as a whole.

(G)

Any other factor that justice may require.

(Health & Safety Code § 25249.7(b)(2).)

1. Re: Any warning

that is required by the settlement complies with this chapter.

A copy of the

Proposed Consent Judgment was presented to the Court. § 3.2 titled "Clear and Reasonable Warnings" sets forth the two Options for warnings Defendant is to provide with distribution of the Covered Products if the threshold amount of lead specified in § 3.1, et seq. is surpassed. The Court has reviewed the foregoing provisions in the Proposed Consent Judgment and find that they satisfy the warning requirement set forth in Health and Safety Code § 25249.6[1]. As such, this requirement is satisfied.

2. Re: Any award

of attorney's fees is reasonable under California law.

Health and Safety

Code, § 25249.7(f)(4)(B), at least implicitly, authorizes recovery of reasonable attorney's fees if there is a settlement. Plaintiff seeks to recover \$40,000 as reimbursement of attorney's fees and costs, to which Defendant has agreed. (Consent Judgment, § 5.) Plaintiff's counsel has set forth the lodestar calculation at ¶¶ 1 - 6 of the Declaration of Tro Krikorian.

The Court finds that the amount of attorney's fees is reasonable. However, the Court will not award any additional fees for the supplemental briefing the Court ordered. (See below.)

This requirement is satisfied.

3. Re: Any penalty amount is reasonable based on the following criteria.

Pursuant to Health & Safety Code § 25249.7(b), Defendant will pay a \$5,000 civil penalty. 75% will be paid to the State of California Office of Environmental Health Hazard Assessment ("OEHHHA") and 25% will be paid to Plaintiff. (Consent Judgment, § 4.)

Cal. Health & Safety Code § 25249.7(b) sets forth the following factors to be considered in assessing the amount of civil penalty:

a. The nature and extent of the violation and the number of, and severity of, the violations.

While Plaintiffs pre-notice test results showed lead levels several times the MADL- requiring a clear and reasonable warning - the level in question was, in fact, well below 1,000 times underlying the MADL. Accordingly, Plaintiff submits the nature and severity of the subject violation is best described as moderate.

At footnote 1 at Page 8, Plaintiff argues that the number and extent of alleged violations is of little utility in considering resolution under the Act when the number of violations have not been formally adjudicated. The Court continued the hearing for further information in this regard.

In the Supplemental Declaration

of Tro Krikorian, he indicates that the penalty amount is supported because of:

(1) Defendant's willingness to agree to discontinue

the Covered Product, pursuant to the terms of the Consent Judgment; (2) the relatively low lead levels contained in the Covered Product which, while well in excess of the safe harbor Maximum Allowable Dosage Level of 0.5 micrograms per grams of product, were nonetheless well below the thousand-fold level known to cause reproductive toxicity. (Suppl. Krikorian Declaration, ¶ 8.)

At ¶ 5 of the Declaration of Michael

Hambly, (attached to the Supplemental Declaration as Exh. A), attorney Hambly states:

"Defendant Naomi Whittel Brands LLC sold 1031 units of the product. in question to consumers in the State of California during the relevant period."

Given the foregoing, the Court finds that this factor weighs in favor of approval.

b. The economic effect of the penalty on the violator.

One assumes that \$5,000 would not have a detrimental effect on defendant. However, Plaintiff must explain why a \$5,000 penalty would have a sufficient deterrent effect on Defendant.

Plaintiff's counsel indicates in the Supplemental Krikorian Declaration that the product at issue has been discontinued following Plaintiff's issuance of the Notice of Violation. (Suppl. Krikorian Declaration, ¶ 7; Michael Hambly Decl., Exh. A.)

In this regard, the deterrent effect was the Notice of Violation, The \$5,000 penalty would add to the deterrent effect.

Moreover, attorney Hambly indicates at ¶ 6 of his Declaration: "The civil penalty, in this case of \$5,000, wiped out all of Defendant's profits from the offending product. This will have a significant deterrent effect on my client in the future."

The Court finds that this factor weighs heavily in favor of approval.

c. Whether

the violator took good faith measures to comply with this chapter and the time these measures were taken.

As noted

above, the product at issue has been discontinued following Plaintiffs issuance of the Notice of Violation. ((Suppl. Krikorian Declaration, ¶ 7; Michael Hambly Decl., Exh. A.) Discontinuing the product and taking it out of the stream of commerce demonstrates good faith effort to comply with Proposition 65 by eliminating exposure to the produce entirely. (Hambly Decl., ¶ 3.)

The Court finds that this factor weighs heavily in favor of approval.

d. The willfulness of the violator's misconduct.

Plaintiff

argues that Defendant has acted very creditably throughout this matter, and there is no evidence to suggest Defendant acted willfully or maliciously in connection with its sale or distribution of the product.

The Court accepts this representation.

The Court finds that this factor weighs in favor of approval.

e. The deterrent effect that the imposition of the penalty would have on both the violator and the regulated community as a whole.

Plaintiff argues that the subject non-contingent penalty of \$5,000 is eminently reasonable, particularly when viewed against recent similar approved resolutions under the Act. Plaintiff provides no such recent similarly approved resolutions, nor whether a deterrent effect has occurred.

As discussed above, it appears the \$5,000 penalty amount is high enough to have a deterrent effect. The Court assumes that other retailers would have similar sales volume of this product, which would also lead to a deterrent effect on the regulated community as a whole.

The Court finds that this factor weighs in favor of approval.

f. Any other factor that justice may require.

11 CCR § 3203

provides:

The reasonableness of civil

penalties in a settlement will be evaluated based on the factors set forth in the Health and Safety Code section 25249.7(b)(2). The following factors are “[other factors that justice may require” to be considered within the meaning of Health and Safety Code section 25249.7(b)(2)(G):

(a)A settlement with little

or no penalty may be entirely appropriate or not, based on the facts or circumstances of a particular case.

. . .

(11 CCR 3203(a).)

The Court does

not find that justice requires consideration of other factors.

4. Payments to

entity as “offset” to the civil penalty.

The Consent Judgment does not call for any payments to an entity as “offset” to the civil penalty. (11 CCR § 3203(d).)

Release Provisions

Here, the public release is specifically limited to Defendant’s covered product, and Plaintiff individually released claims regarding the covered products. The scope of this release is proper. (Consent Judgment, § 6.1.)

Given the foregoing,

the hearing on the motion for approval and entry of the stipulated consent judgment is GRANTED.

[1] “No

person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10." (Health & Saf .Code § 25249.6.)